UPSC EPFO · INDUSTRIAL RELATIONS, LABOUR CODES AND SOCIAL SECURITY IN INDIA

Code on Social Security, 2020

One topic, written from the law as it stands today. Each rule names the Code section that applies now, and what the old Act said where it changed.

How to read these notes

Code on SS s.16(1)(a)	The law today. The Code on Social Security 2020 is in force in full, by date: 3 May 2021, 3 May 2023, and everything else from 21 November 2025.
SS Central Rules r.19(1) EPF Scheme 2026 para 18(2)	A point from the Social Security (Central) Rules 2026 (in force from 8 May 2026) or from a Scheme of 29 June 2026. The Code itself leaves the point to them.
OLD EPF Act 1952 s.6	An old Act, now repealed. Shown only to compare.
NEEDS RULES	The section works through rules or a Government notification.
SAME CHANGED NEW REMOVED	How the Code compares with the old law.

Code on SS s.x **Rule card**

One rule of law. The section is always at the top.

OLD Old Act s.y what it said before SAME

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Nine Acts on provident fund, state insurance, compensation, maternity, gratuity, building workers, unorganised workers and job vacancies became one Code on social security. This topic teaches the Code first, scheme by scheme: who is covered, the money numbers, the authority that decides, and the new gig, platform and unorganised worker rules. The old Acts appear only to show what changed.

LAW TODAY

The Code on Social Security, 2020 Code on SS (Act 36 of 2020) is in force in full, by date. Code on SS s.142 (Aadhaar) has been in force from 3 May 2021 (S.O. 1730(E)). The Employees' Pension Scheme 1995 parts of Code on SS ss.15(3), 16(1)(a), 16(2), 164(2)(b), all of Code on SS s.16(1)(b), the Code on SS s.143 part at serial (v) and the Code on SS s.164(1) repeal of the matching EPF Act 1952 provisions are in force from 3 May 2023 (S.O. 2060(E)). Everything else is in force from 21 November 2025 (S.O. 5319(E), as corrected by S.O. 5936(E) of 19 December 2025). The Code repealed 9 Acts Code on SS s.164(1), including the EPF Act 1952. The Social Security (Central) Rules, 2026 (G.S.R. 344(E), 8 May 2026) are in force from the date of publication. A Rules chip marks a point that comes from the Rules, not the Code text. The EPF Scheme 2026 (G.S.R. 525(E)) and the EDLI Scheme 2026 (G.S.R. 526(E)) are dated 29 June 2026 and are in force on publication. The Employees' Pension Scheme 2026 (G.S.R. 527(E)) is dated 29 June 2026 and is also in force on publication.

1. **1 Code, 9 Acts.** The Code has **164** sections and **14** chapters. It was assented to on 28 September 2020. It is in force by date: 3 May 2021, 3 May 2023, and the rest from 21 November 2025.

2. **Who is covered.** EPF: **20 or more** employees Code on SS First Schedule. ESI: **10 or more** persons, other than a seasonal factory. Gratuity: factories, mines, oilfields, plantations, ports and railway companies of any size, and shops or establishments with **10 or more** employees. Once covered, always covered Code on SS s.1(8).

3. **The money numbers.** EPF: the Code reads **10%**, with **12%** by notification Code on SS s.16(1)(a); the EPF Scheme 2026 fixes **12%** each side EPF Scheme 2026 para 18(2). ESI: employer **3.25%** plus employee **0.75%** SS Central Rules r.19(1). Maternity: **26 weeks**, or **12 weeks** with two or more surviving children Code on SS s.60(3). Gratuity: **15 days' wages** a year after **5 years** Code on SS s.53. Death compensation: **50%** of monthly wages x the factor Code on SS s.76(1)(a).

4. **The new groups.** An aggregator pays **1% to 2%** of annual turnover, capped at **5%** of what it pays gig and platform workers Code on SS s.114(4); the duty starts on a notified date. Building workers' cess: **1% to 2%** of the cost of construction Code on SS s.100(1). The Social Security Fund is in Code on SS s.141.

5. **Compliance.** First-offence compounding Code on SS s.138(1): **half** of the maximum fine for a fine-only offence, **three-fourths** where there is imprisonment up to one year and fine. Obstructing an

Inspector-cum-Facilitator: up to **6 months** or Rs **50,000**, or both. Exemption under Code on SS s.143: initially **3 years**.

1. The Code at a glance

Point	Rule
Act	Act 36 of 2020. Presidential assent on 28 September 2020.
Size	**164** sections. The last, Code on SS s.164, is "Repeal and savings".
Chapters	**14**, from Chapter I Preliminary to Chapter XIV Miscellaneous.
Acts repealed	**9** Code on SS s.164(1).
Commencement power	Different dates may be fixed for different provisions Code on SS s.1(3). A reference in a provision to the commencement of the Code means the coming into force of that provision.
Rules	Social Security (Central) Rules 2026, G.S.R. 344(E), 8 May 2026. In force on publication.

When each part is in force

The Code has no single commencement date. Read the table by provision.

Provision	In force from	Notification
Code on SS s.142 (Aadhaar for registration, benefits, career-centre services and payments to Insured Persons)	**3 May 2021**	S.O. 1730(E), 30 April 2021
The Employees' Pension Scheme 1995 parts of Code on SS ss.15(3), 16(1)(a), 16(2), 164(2)(b); the whole of Code on SS s.16(1)(b); the part of Code on SS s.143 that gives effect to Code on SS s.16(1)(b)(ii) for that Scheme; the repeal of the matching EPF Act 1952 provisions in Code on SS s.164(1)	**3 May 2023**	S.O. 2060(E), 7 items
Code on SS ss.1 to 14, 17 to 141, 144 to 163; Code on SS s.143 except the part above; the rest of Code on SS s.164	**21 November 2025**	S.O. 5319(E), under Code on SS s.1(3)
The rest of Code on SS s.15 and Code on SS s.16, including Code on SS s.16(1)(c)	**21 November 2025**	S.O. 5936(E) (corrigendum), entries (a) and (b)

Provision	In force from	Notification
The rest of Code on SS s.164(1), including the EPF Act repeal, and the rest of Code on SS ss.164(2), 164(3)	**21 November 2025**	S.O. 5936(E), entries (c) and (d)

S.O. 5936(E) of 19 December 2025 corrects S.O. 5319(E). It was published in Gazette No. 5739 of 20 December 2025. Read together, the lists in the four instruments name every section as in force.

Key dates

> **28 Sep 2020** Presidential assent.
>
> **3 May 2021** S.O. 1730(E): Code on SS s.142 (Aadhaar).
>
> **3 May 2023** S.O. 2060(E): seven items, mostly the Employees' Pension Scheme 1995 parts, with Code on SS s.16(1)(b) and the EPF Act repeal.
>
> **21 Nov 2025** S.O. 5319(E): the general date for the rest.
>
> **19 Dec 2025** S.O. 5936(E), corrigendum: the rest of Code on SS ss.15, 16, 164.
>
> **8 May 2026** Central Rules 2026, G.S.R. 344(E).
>
> **29 Jun 2026** EPF Scheme 2026 (G.S.R. 525(E)) supersedes the EPF Scheme 1952.
>
> **17 Sep 2026** EPF wage ceiling raised to Rs 25,000 (Cabinet approval of 16 September 2026).

Savings Code on SS s.164(2)(b): the EPF Scheme 1952, the EDLI Scheme 1976, the EPS 1995 and the Tribunal (Procedure) Rules 1997 stay in force for one year from commencement of the Code, so far as they are not inconsistent with it. The EPF Scheme 1952 was superseded on publication of G.S.R. 525(E) on 29 June 2026.

2. Definitions and who is covered

Law today. All of Code on SS s.2 (definitions) is in force from 21 November 2025.

Coverage by chapter

Chapter	Applies to
III, Employees' Provident Fund	Every establishment in which **twenty or more** employees are employed Code on SS s.1(4), Code on SS First Schedule.
IV, Employees' State Insurance	Every establishment in which **ten or more** persons are employed, other than a seasonal factory Code on SS First Schedule.

Chapter	Applies to
V, Gratuity	Every factory, mine, oilfield, plantation, port and railway company. Also every shop or establishment in which **ten or more** employees are or were employed on any day of the preceding twelve months, and shops or establishments the appropriate Government notifies Code on SS First Schedule.
VI, Maternity Benefit	(a) Every factory, mine or plantation, including one belonging to Government. (b) Every shop or establishment in which **ten or more** employees are or were employed on any day of the preceding twelve months. Other establishments the appropriate Government notifies. The size limit applies only to (b) Code on SS First Schedule.
VII, Employees' Compensation	Employers and employees to whom Chapter IV does not apply Code on SS First Schedule.
VIII, Building and other construction workers	Every establishment under the building and other construction work entry of the First Schedule. The building work covered excludes work employing fewer than ten workers in the preceding twelve months Code on SS s.2(6).

Extensions and extra coverage rules

Point	Rule
Voluntary ESI Code on SS s.1(7)	The Director General of the Corporation may extend Chapter IV on the agreement of the employer and the majority of employees. The employer may later withdraw on joint agreement.
Hazardous occupation, Chapter IV	Applies to an establishment in a hazardous or life-threatening occupation notified by the Central Government, even with a single employee. It bites only after a notification names the occupations.
Plantation, Chapter IV	The employer of a plantation may opt for Chapter IV by giving his willingness to the Corporation, where the Chapter's benefits are better than what the employer provides.
Voluntary EPF Code on SS s.1(5)	The Central Provident Fund Commissioner may, by notification, apply Chapter III where the employer and the majority of employees have agreed. It may later be made inapplicable on a joint application.
Any establishment Code on SS s.1(6)	The Central Government may, after not less than two months' notice, apply the Code to any establishment employing not less than a number it notifies.

Point	Rule
Once covered Code on SS s.1(8)	An establishment to which a Chapter applies at the first instance stays covered even if the number of employees later falls below the First Schedule threshold.
Counting employees Code on SS s.2(26)	To decide coverage under Chapter III or IV, employees whose wages are above the notified wage ceiling are also counted (second proviso).

TRAP

Students swap the EPF line and the ESI line because both are headcounts in the First Schedule. EPF is **20 or more** employees. ESI is **10 or more** persons. Gratuity and maternity use 10 or more only for shops and establishments; factories, mines and plantations are covered whatever the size.

Definitions the whole Code uses

Term	Definition
Gig worker Code on SS s.2(35)	A person who performs work or participates in a work arrangement and earns from such activities outside of traditional employer-employee relationship.
Platform work Code on SS s.2(60)	A work arrangement outside a traditional employer-employee relationship in which organisations or individuals use an online platform to access others to solve specific problems or provide specific services, in exchange for payment.
Platform worker Code on SS s.2(61)	A person engaged in or undertaking platform work.
Aggregator Code on SS s.2(2)	A digital intermediary or a market place for a buyer or user of a service to connect with the seller or the service provider.
Unorganised worker Code on SS s.2(86)	A home-based worker, self-employed worker or a wage worker in the unorganised sector. It includes a worker in the organised sector who is not covered by the Industrial Disputes Act 1947 or Chapters III to VII of the Code.
Unorganised sector	An enterprise owned by individuals or self-employed workers where, if it employs workers, they number fewer than ten.

Term	Definition
Fixed term employment Code on SS s.2(34)	The engagement of an employee on a written contract of employment for a fixed period. His hours of work, wages, allowances and other benefits shall not be less than those of a permanent employee. He is eligible for all benefits proportionately according to the period of service rendered, even if the qualifying period is not completed.
Inter-State migrant worker Code on SS s.2(41)	A person employed in an establishment who was recruited directly by the employer or through a contractor in one State for an establishment in another State, or who came on his own from one State and got employment in an establishment of another State, drawing wages not exceeding Rs 18,000 a month or a higher amount notified.
Wages Code on SS s.2(88); wage ceiling Code on SS s.2(89)	"Wage ceiling" means such amount of wages as the Central Government notifies.

"Employee" means three things

Chapter	"Employee"
III (other than the Employees' Provident Fund Scheme) and IV	One drawing wages up to the notified wage ceiling Code on SS s.2(26). For counting establishments, those above the ceiling also count.
V, Gratuity	The Code on SS s.2(26) definition. Managerial and supervisory staff are included; apprentices under the Apprentices Act are excluded. A person holding a post under the Central or State Government and governed by another Act or rules providing for gratuity is not an employee for this Chapter.
VII, Compensation	Only the persons in the Second Schedule and others the Central or State Government adds by notification Code on SS s.2(26) third proviso.

3. Employees' Provident Fund (Chapter III)

Law today. Code on SS Ch III covers EPF. Code on SS ss.15(1), 15(2) are in force from 21 November 2025; the Pension Scheme part of Code on SS s.15(3) from 3 May 2023, the rest from 21 November 2025. The EPF Act 1952 is repealed and the EPF Scheme 2026 is in force from 29 June 2026.

Schemes, contributions and funds

Code on SS s.15(1) Three Schemes

The Central Government may frame three Schemes by notification: the Employees' Provident Fund Scheme; the Employees' Pension Scheme (superannuation, retiring or permanent total disablement pension; widow or widower, children and orphan pension; nominee pension); and the Employees' Deposit Linked Insurance Scheme (life insurance). Code on SS s.15(2) lists the matters in Parts A, B and C of the Fifth Schedule.

Code on SS s.16(1)(a) Contribution

The employer's contribution to the Provident Fund is **10%** of the wages payable to each employee, directly employed or through a contractor. The employee's contribution equals it.

OLD EPF Act 1952 s.6 10% of basic wages, dearness allowance and retaining allowance (if any). The base changed from named pay heads to "wages" CHANGED

Code on SS s.16(1)(a) 12% by notification

First proviso: the Central Government may, after inquiry, notify an establishment or class for which "ten per cent." reads "twelve per cent." The second proviso lets it notify the rate of employees' contributions and the period for any class of employee. An employee may, if he so desires, contribute more than 10% of the wages; the employer is not obliged to pay more than his own contribution.

Code on SS s.16(1)(b) Pension Fund

The Pension Fund receives from the employer's contribution not more than **8 and one-third per cent.** of wages (or the notified per cent.), plus sums paid by employers of exempted establishments under Code on SS s.143, plus sums the Central Government specifies after appropriation by Parliament. In force from 3 May 2023.

Code on SS s.16(1)(c) Insurance Fund

The Deposit-Linked Insurance Fund receives from the employer, for every employee, an amount not more than **1%** of the wages (or the notified per cent.), and a further sum not exceeding **one-fourth** of that contribution for the administration expenses of the Insurance Scheme, other than the expenses towards the cost of any benefits.

Point	Rule
Vesting Code on SS s.16(2)	The Provident Fund, Pension Fund and Insurance Fund vest in, and are administered by, the Central Board.

Point	Rule
Contract employees Code on SS s.17	Contributions and administration charges paid by a principal employer for contract employees may be recovered from the contractor. The contractor may recover the employee's contribution from the employee's wages but not the employer's share.
Charge on assets Code on SS s.19	Any amount due under Chapter III is a charge on the assets of the establishment and is paid in priority in accordance with the Insolvency and Bankruptcy Code, 2016.
Exclusion Code on SS s.20(1)(a)	Chapter III does not apply to an establishment registered under the Co-operative Societies Act 1912 or a State co-operative law employing **less than fifty** persons and working without the aid of power.
Exclusions Code on SS s.20(1) (b) to (d)	Also excluded: a Central or State Government establishment whose employees get contributory PF or old age pension under a scheme or rule; an establishment set up under a Central or State law whose employees get such benefits under that law; and employees who, immediately before the Code's commencement, were receiving PF benefits under any Central or State enactment.
No "infancy" exclusion	Code on SS s.20(1) lists only clauses (a) to (d). The Code has no exclusion for new establishments in their first three years.
Separate PF account Code on SS s.21(1)	The Central Government may, on an application by the employer and the majority of employees of an establishment employing **one hundred or more** persons, authorise the employer to maintain a separate provident fund account. It is refused if the employer defaulted on PF contribution or committed another offence under the Code in the previous three years.
Transfer Code on SS s.22	An employee who changes from one establishment to another has the accumulated PF or pension amount transferred as the Provident Fund Scheme or Pension Scheme specifies.

10%, 12% and 8.33%

Point	Rule	Where
Code default	10% of wages, each side	Code on SS s.16(1)(a)
Code, by notification	12% for a notified establishment or class	Code on SS s.16(1)(a) first proviso

Point	Rule	Where
EPF Scheme 2026	12% of the wages payable to the employee, each side	EPF Scheme 2026 para 18(2)
Scheme exception	10% for the class of establishments notified by the Central Government. The Scheme does not list those classes.	EPF Scheme 2026 para 18(2) first proviso
Pension Fund share	Not more than 8 and one-third per cent. of wages, from the employer's contribution	Code on SS s.16(1)(b)
Insurance Fund	Not more than 1% of wages, plus up to one-fourth of that for administration	Code on SS s.16(1)(c)

TRAP

Students take "12%" as the Code rate because the Scheme says 12%. The defaults point opposite ways. The Code reads 10% and allows 12% by notification. The Scheme 2026 reads 12% and allows 10% for notified classes.

EPF Scheme 2026 (G.S.R. 525(E))

Made by the Ministry of Labour and Employment under Code on SS s.15(1)(a), dated 29 June 2026. It comes into force on publication. It supersedes the Employees' Provident Funds Scheme 1952, except for things done or omitted to be done before. The Scheme defines "Repealed Act" in para 2(1)(m) as the Employees' Provident & Miscellaneous Provisions Act, 1952.

Point	Rule
Membership EPF Scheme 2026 para 9(2)	Every employee in or in connection with the work of a covered establishment is entitled and required to become a member from the day the Scheme comes into force in the establishment or the date of joining, whichever is later. An excluded employee is outside this rule.
Rate EPF Scheme 2026 para 18(2)	Employer: 12% of the wages payable to the employee. Employee: equal.
Ceiling EPF Scheme 2026 para 18(3)	Contribution is subject to the wage ceiling notified by the Central Government from time to time. Where a member's monthly wage exceeds the ceiling, the contributions are limited to the contribution on the ceiling. The Scheme states no rupee figure.

Point	Rule
Payment EPF Scheme 2026 para 20(1), 28(3)	Both shares, with administrative charges, are paid within **fifteen days** of the close of every month. The employer remits by electronic mode.
Damages EPF Scheme 2026 para 23(1) Table	The Central Provident Fund Commissioner may levy damages, not exceeding the arrears: **0.25%** of arrears a month for default of less than two months; **0.50%** for more than two and less than four months; **1%** for more than four months.
Interest to members EPF Scheme 2026 para 42(1)	The Commissioner credits interest at the rate the Central Government determines in consultation with the Central Board, on a monthly running balance basis. The Scheme states no rate.
Transfer EPF Scheme 2026 para 43	A member moving to another covered or exempted establishment, or one with its own provident fund, applies on the designated portal to transfer the balance. The Commissioner may provide automated transfer subject to confirmation of identity.
Nomination EPF Scheme 2026 para 44	Each member nominates on the designated portal. Where the member has a family, the nomination must be in favour of one or more persons of the family, and a nomination in favour of a person outside the family is invalid.
UAN EPF Scheme 2026 para 2(1)(q), 24(2)(iii)	The Universal Account Number is an identity number allotted to an employee on a permanent basis in the form and manner the Commissioner specifies. The employer must facilitate generation of a UAN for an employee who fails to generate it on the portal.

The 0.25%, 0.50% and 1% above are Scheme rates, not Code text. The Code gives only the power: interest on delayed payment is simple interest at the rate notified by the Central Government, from the date the amount fell due till payment Code on SS s.127. Damages may not exceed the arrears, and are levied after a hearing Code on SS s.128. Under the Vishwas scheme, damages for delayed contributions are reduced to 0.25%, 0.5% or 1% a month, by the period of default. The Code gives the power to reduce or waive damages only on an insolvency plan Code on SS s.128.

The wage ceiling: Rs 15,000 and Rs 25,000

Point	Rule
Code Code on SS s.2(89)	"Wage ceiling" means such amount of wages as may be notified by the Central Government.
Before 17 September 2026	Rs 15,000 a month, in force since 1 September 2014.
From 17 September 2026	Rs 25,000 a month, on Cabinet approval of 16 September 2026, covering EPF, EPS and EDLI.

Recovery, assessment and appeals

1. **Authorised Officer**
   An officer not below Group 'A' rank decides disputes on the applicability of Chapter III or IV and the amount due Code on SS s.125(1). No proceeding starts after **5 years** from the date the dispute is alleged to have arisen or the amount is alleged to have been due.

2. **Inquiry**
   It is held day to day as far as practicable, with an endeavour to conclude it within **2 years**. If not concluded, the officer records reasons and the Central Provident Fund Commissioner may grant an extension of up to **1 year** Code on SS s.125(2). The two years is an endeavour, not a bar.

3. **Interest and damages**
   Simple interest at the notified rate Code on SS s.127. Damages not exceeding the arrears, after a hearing Code on SS s.128.

4. **Appeal to the Tribunal**
   A person aggrieved by an order on (a) determination and assessment of dues under Code on SS s.125 for Chapter III and (b) damages under Code on SS s.128 for Chapter III may appeal to the Tribunal constituted by the Central Government Code on SS s.23(1). The employer must first deposit **25%** of the amount due Code on SS s.23(3). The Tribunal endeavours to decide within **1 year** Code on SS s.23(4).

5. **Recovery Officer**
   The Authorised Officer or competent authority sends a certificate to the Recovery Officer Code on SS ss.129(2), 129(4). The Recovery Officer recovers arrears for any chapter of the Code, not for EPF alone, by attachment and sale of property, arrest of the employer or appointing a receiver.

Code on SS s.2(84) defines "Tribunal" as the Industrial Tribunal constituted by the appropriate Government under OLD ID Act 1947 s.7A. IR Code s.44(1) says the Industrial Tribunal constituted by the Central Government also exercises the jurisdiction of the Tribunal defined in the EPF Act.

Bridge: EPF Act 1952 to the Code and the Scheme 2026

The EPF and Miscellaneous Provisions Act 1952 is Act 19 of 1952, dated 4 March 1952. It is repealed: the corresponding provisions from 3 May 2023, the rest from 21 November 2025.

Point	EPF Act 1952 (repealed)	Code now
Coverage	Every factory in a Schedule I industry with twenty or more persons, and any other establishment or class of twenty or more specified by notification. The Central Government may extend it to fewer than twenty after two months' notice.	Every establishment with twenty or more employees, no list of industries Code on SS First Schedule.
Once covered	OLD EPF Act 1952 s.1(5) stays covered even if the number falls below twenty.	Code on SS s.1(8)
Voluntary cover	OLD EPF Act 1952 s.1(4) the Commissioner applies the Act on the agreement of the employer and the majority of employees.	Code on SS s.1(5)
Contribution	OLD EPF Act 1952 s.6 10% of basic wages, dearness allowance and retaining allowance (if any).	Code on SS s.16(1)(a) 10% of "wages". Scheme 2026 EPF Scheme 2026 para 18(2): 12% of wages.
Interest	OLD EPF Act 1952 s.7Q simple interest at 12% a year (or a higher rate the Scheme specifies).	Code on SS s.127 rate notified, no figure.
Damages	OLD EPF Act 1952 s.14B not exceeding the arrears, as the Scheme specifies, after a hearing.	Code on SS s.128; Scheme 2026 EPF Scheme 2026 para 23(1).
Appeal deposit	OLD EPF Act 1952 s.7-O **75%**, which the Tribunal may waive or reduce for reasons recorded.	Code on SS s.23(3) **25%**, no waiver proviso.
Appellate body	OLD EPF Act 1952 s.7D the Industrial Tribunal constituted by the Central Government under OLD ID Act 1947 s.7A is the Tribunal for the Act.	Code on SS s.23 the Tribunal constituted by the Central Government.
Separate PF account	OLD EPF Act 1952 s.16A one hundred or more persons.	Code on SS s.21 the same rule, in force.
Exemption	OLD EPF Act 1952 s.17 the appropriate Government may exempt an establishment from the Act or a Scheme if its employees get benefits not less favourable.	Code on SS s.143

Point	EPF Act 1952 (repealed)	Code now
Appeals list	OLD EPF Act 1952 s.7-I(1) appeal to a Tribunal against notifications and orders under the proviso to OLD EPF Act 1952 ss.1(3), 1(4), and under OLD EPF Act 1952 ss.3, 7A(1), 7B, 7C, 14B (except an order rejecting a review application). The list does not name OLD EPF Act 1952 s.7Q.	Code on SS s.23(1) dues under Code on SS s.125 and damages under Code on SS s.128.
Recovery Officer	Defined in OLD EPF Act 1952 s.2(kb), with the certificate procedure in OLD EPF Act 1952 s.8B.	Code on SS s.129 serves every chapter of the Code, not EPF alone.

The appeal deposit falls from 75% to 25%. "Reduced to 25%" is true only against the old Act.

4. EPF withdrawals and settlement (Scheme 2026)

Law today. The EPF Scheme 2026, in force from 29 June 2026, sets the withdrawal rules.

Point	Rule
Minimum partial withdrawal EPF Scheme 2026 para 46(1)	Not less than Rs 1,000.
Minimum balance EPF Scheme 2026 para 46(1) Explanation (a)	**25%** of the aggregate of the total contributions to the member's credit (employee's and employer's share and interest) up to the date of withdrawal must remain to the member's credit.
Leaving before 12 months EPF Scheme 2026 para 46(5)	A member may withdraw up to the Eligible Member Balance.
Frequency caps EPF Scheme 2026 para 46	Education **ten** times during membership; marriage **five** times; housing **five** times; special circumstances **two** times in a financial year.
Full withdrawal on retirement EPF Scheme 2026 para 49(1)(i)	After attaining **fifty-five** years of age.
Full withdrawal on leaving EPF Scheme 2026 para 49(2)	In cases not listed in para 49(1), the Commissioner or an authorised officer may permit full withdrawal on ceasing to be an employee in any covered establishment, provided the member has not been employed in any such establishment for a continuous period of not less than **twelve months** before the application.

Partial withdrawal EPF Scheme 2026 para 46(2), 46(3), 46(4) has three groups. Each allows up to **100%** of the Eligible Member Balance after **twelve months** of total membership.

Group (a)	Group (b)	Group (c)
Illness, education and marriage of self and family members.	Housing.	Special circumstances.

The October 2025 Central Board decision merged 13 partial-withdrawal provisions into three categories (essential needs, housing, special circumstances). It set up to 100% of the eligible balance, 25% of contributions kept as minimum, 12 months' minimum service, education up to 10 times and marriage up to 5 times. It changed premature final settlement from 2 months to 12 months. Pension withdrawal is after 36 months. The Scheme 2026 carries the 100% limit, the 25% balance, the twelve months, the ten education withdrawals and the five marriage withdrawals. The auto-settlement limit for advance claims was raised from Rs 1 lakh to Rs 5 lakh in June 2025.

TRAP

Students swap two ages. Full withdrawal on retirement is **55** EPF Scheme 2026 para 49(1)(i). Pension on superannuation is **58** Code on SS s.2(82) proviso for Chapter III.

5. Employees' Pension Scheme 2026

Law today. The Pension Fund is in Code on SS s.16(1)(b), in force from 3 May 2023. The Employees' Pension Scheme 2026 (G.S.R. 527(E), 29 June 2026) is made under Code on SS s.15(1)(b) in supersession of the Employees' Family Pension Scheme 1971 and the Employees' Pension Scheme 1995. It is in force on publication.

Point	Rule
Employer's part EPS Scheme 2026 para 4(1)	From the employer's contribution each month under Code on SS s.16(1)(a), **8.33%** of the employee's wages, up to the notified wage ceiling, goes to the Pension Fund within fifteen days of the close of the month.
Central Government's part EPS Scheme 2026 para 4(2)	**1.16%** of the pay of the members, limited to such sum as the Central Government specifies.
Superannuation pension EPS Scheme 2026 para 12(1)(i)	Eligible service of not less than **ten years** and retirement on attaining the age of superannuation. For Chapter III the Code fixes that age at **fifty-eight years** Code on SS s.2(82) proviso.

Point	Rule
Formula EPS Scheme 2026 para 12(2)	For a member other than an existing member: (pensionable wages x pensionable service) divided by **70**.
Pensionable wages EPS Scheme 2026 para 11	The average monthly wages drawn during the contributory period of service in the span of **sixty months** immediately before exit from membership, limited to the notified wage ceiling per month.
Minimum EPS Scheme 2026 para 12(8)	The monthly pension, including any relief, is not less than **Rs 1,000**. From 1 September 2014 that minimum is subject to deductions for commutation and return of capital taken before 26 September 2008 and for early pension.
Early and deferred pension EPS Scheme 2026 para 12(7), 12(9)	Early pension is allowed from a date not earlier than **fifty** years of age, reduced at **4%** for every year the age falls short of the age of superannuation. A member under para 12(1)(a) may defer the pension up to **sixty** years of age, with an increase of 4% for every completed year.

Bridge, EPS 1995 (superseded): pension from age 58 after at least 10 years of service. The formula was (pensionable salary x pensionable service) divided by 70, with pensionable salary the average of the last 60 months. The minimum was Rs 1,000 a month. The Scheme 2026 says "pensionable wages", not "pensionable salary".

Higher pension: by its judgment of 4 November 2022 (EPFO v. Sunil Kumar B.) the Supreme Court allowed members in service on 1 September 2014 to opt for pension on actual wages ("higher pension"). Members who retired before that date are excluded.

6. Employees' Deposit-Linked Insurance Scheme 2026

Law today. The Insurance Fund is in Code on SS s.16(1)(c). The EDLI Scheme 2026 (G.S.R. 526(E), 29 June 2026) is made under Code on SS s.15(1)(c) in supersession of the EDLI Scheme 1976. It is in force on publication.

Point	Rule
Who pays	The employer pays. Code on SS s.16(1)(c) caps the contribution at 1% of wages. The 1976 Scheme had no employee contribution.

Point	Rule
Rate EDLI Scheme 2026 para 5	Calculated on "wages" as defined in Code on SS s.2(88), subject to the wage ceiling in Code on SS s.2(89). The rate is notified by the Central Government in consultation with the Central Board. The Scheme gives no per cent. figure. The employer's contribution may not be deducted from the employee's wages EDLI Scheme 2026 para 8.
Benefit on death EDLI Scheme 2026 para 21(4)	For an employee in continuous employment for twelve months: average monthly wages of the preceding twelve months (subject to the wage ceiling) x **35**, plus **50%** of the average balance in the account during the preceding twelve months. The balance part has a ceiling of **Rs 1,75,000**. The benefit in para 21(1) is paid if higher. Para 21(5) increases the benefit further by 20%.
Minimum and maximum EDLI Scheme 2026 para 21(4)	Not less than **Rs 2,50,000** and not more than **Rs 7,00,000**.

7. Employees' State Insurance (Chapter IV)

Law today. Code on SS Ch IV covers ESI. It is in force from 21 November 2025, and the ESI Act 1948 is repealed. The contribution rates and benefit rates sit in the Social Security (Central) Rules 2026, not in the Code.

Contribution and the Corporation

SS Central Rules r.19(1) **Contribution rates**

Employer **3.25%** and employee **0.75%** of the wages, rounded to the next higher rupee. Total **4%**. The Code leaves the rates to the Central Government Code on SS s.29(2).

OLD ESI Act 1948 the 4% rate (3.25% plus 0.75%) has applied since 1 July 2019 SAME

Example: on a wage of Rs 20,000 the employer pays Rs 650 and the employee Rs 150.

Employer, 3.25% of Rs 20,000: Rs 650

Employee, 0.75%: Rs 150

Point	Rule
Corporation Code on SS s.5(1)(a)	The Employees' State Insurance Corporation has a Chairperson appointed by the Central Government.

Point	Rule
Person with disability SS Central Rules r.19	The employer of a person with disability does not pay the employer's share for up to three years from the start of the contribution period (or as the Central Government specifies). The Central Government reimburses the Corporation.
Periods SS Central Rules r.2(1)(i), 2(1)(q)	The contribution period and the benefit period are each not more than six consecutive months, as specified in the regulations. The Rules leave the dates to the regulations.
Deduction Code on SS s.31	Any sum deducted by the employer from wages under the Chapter is deemed to have been entrusted to him by the employee for the purpose of paying the contribution. The employee's contribution may be deducted only from wages for the period it relates to.
Commuting Code on SS s.34(3)	An accident while commuting from residence to the place of employment for duty, or back after duty, is deemed to arise out of and in the course of employment if a nexus between the circumstances, time and place of the accident and the employment is established.

Under the old ESI Act, employees whose average daily wage was up to **Rs 176** were exempt from their own share of the contribution, and the employer still paid his share. This figure is not in the Rules.

Benefits

Benefit	Rule
The six Code on SS s.32(1)	Insured Persons and their dependants are entitled to sickness, maternity, disablement, dependants' benefit, medical benefit and funeral expenses. The named benefit is "medical benefit"; "health benefit" is not a named benefit.
Medical benefit Code on SS s.32(2)	Available to the Insured Person and, on the Corporation's decision under its regulations, to the family. The Code text does not say "from day 1".
Sickness SS Central Rules r.22(1)	Qualified where contributions were payable for not less than **78 days** in the corresponding contribution period. Paid at **70%** of the Standard Benefit Rate, rounded to the next higher rupee. Not paid for more than **91 days** in any two consecutive benefit periods. The Rule does not say "in a year".

Benefit	Rule
Extended sickness SS Central Rules r.22(2)	**80%** of the Standard Benefit Rate for diseases specified in the Corporation's regulations, for a maximum of **730 days** (2 years), including ordinary sickness benefit.
Maternity SS Central Rules r.22(3)	The Standard Benefit Rate (the average daily wage, so 100%) for **26 weeks**, of which not more than **8 weeks** precede delivery; **6 weeks** for miscarriage or medical termination; **12 weeks** for a commissioning or adopting mother; **12 weeks**, of which not more than 6 weeks precede confinement, for a woman with two or more surviving children. Qualifying condition: contributions for 70 days in the two preceding contribution periods.
Medical bonus SS Central Rules r.22(4)	**Rs 15,000** per case for confinement expenses where the necessary ESI medical facilities are not available, for two confinements only.
Disablement and dependants SS Central Rules r.22	Temporary and permanent disablement benefit: **90%** of the Standard Benefit Rate. Dependants' benefit (death from employment injury): **90%** of the Standard Benefit Rate.
Funeral Code on SS s.32(1)(f) proviso; SS Central Rules r.21	The Code caps funeral expenses at the amount the Central Government prescribes and requires the claim within **three months** of death, or within such extended period as the Corporation or an officer or authority authorised by it allows. The amount of funeral expenses is notified by the Corporation and is **Rs 20,000** SS Central Rules r.21.

Disputes and appeals

Point	Rule
Employees' Insurance Court Code on SS ss.37, 48, 49	Disputes about contributions, benefits or who is an employee go to the Employees' Insurance Court constituted by the State Government. Questions of disablement are decided by a medical board. An appeal lies to the medical appeal tribunal or directly to the Employees' Insurance Court.
High Court Code on SS s.52	An appeal lies from an order of the Employees' Insurance Court only if it involves a substantial question of law, within **sixty days** of the order.

8. Employees' Compensation (Chapter VII)

Law today. Code on SS Ch VII pays compensation for work injury and occupational disease. It is in force from 21 November 2025. The Employee's Compensation Act 1923 is repealed.

Does Chapter IV (ESI) apply to the establishment?

Yes

The ESI benefits in Code on SS s.32 apply, not Chapter VII.

No

Chapter VII pays, to the persons in the Second Schedule and others notified Code on SS s.2(26) third proviso.

Code on SS s.74(1) Liability

The employer pays compensation if personal injury is caused to an employee by accident, or by an occupational disease listed in the Third Schedule, arising out of and in the course of employment. The employer is not liable if the injury does not result in total or partial disablement for a period exceeding **three days**.

Code on SS s.74(1)(b) Exceptions

No liability for an injury not resulting in death or permanent total disablement if it is directly attributable to the employee being under the influence of drink or drugs, wilful disobedience of an express safety order or rule, or wilful removal or disregard of a safety guard.

Code on SS s.74(4) Commuting

An accident while commuting from residence to the place of employment for duty, or back after duty, is deemed to arise out of and in the course of employment if a nexus between circumstances, time and place of the accident and the employment is established.

Code on SS s.76(1)(a) Death

50% of the monthly wages of the deceased x the relevant factor, or an amount notified by the Central Government, whichever is more.

OLD EC Act 1923 s.4(1)(a) 50% of monthly wages x relevant factor SAME

Code on SS s.76(1)(b) Permanent total disablement

60% of the monthly wages x the relevant factor, or a notified amount, whichever is more. The Central Government may enhance both amounts by notification.

Code on SS s.76(1)(c) **Permanent partial disablement**

For scheduled injuries, the percentage of the permanent total disablement amount fixed in Part II of the Fourth Schedule. For others, a percentage proportionate to the loss of earning capacity assessed by the medical practitioner.

OLD EC Act 1923 Schedule I Part II the injuries list CHANGED

Code on SS ss.76(1)(d), 76(4) **Temporary disablement**

A half-monthly payment of **25%** of monthly wages. Payable on the sixteenth day from disablement if it lasts 28 days or more, otherwise after a waiting period of three days. Then half-monthly during the disablement or five years, whichever is shorter.

Point	Rule
Relevant factor	For an employee aged 48 the factor is **159.80** (Sixth Schedule). Age means completed years on the last birthday before the compensation fell due.
Funeral and medical Code on SS ss.76(5), 76(7)	The employer deposits with the competent authority not less than **Rs 15,000** (or the State Government's higher amount) for the eldest surviving dependant's funeral expenses. The employer reimburses the actual medical expenditure.
Notice and claim Code on SS s.82	Notice of the accident as soon as practicable. A claim within **two years** of the accident (or, for death, of the date of death).
Late payment Code on SS s.77(3)	If the employer defaults in paying compensation within one month of the due date, the competent authority directs interest at the prescribed rate and, if the delay is unjustified, a further sum up to **50%** of the arrears as damages. The Code says "damages", not "penalty".
Interest SS Central Rules r.57	Where compensation is unpaid after thirty days, simple interest is 12% a year or any other rate notified, from the due date.
Deciding officer Code on SS ss.90(1), 91	The "competent authority" is appointed by the State Government under Code on SS s.91 and settles liability or amount under Code on SS s.90(1).
Appeal Code on SS s.99	To the High Court from the listed orders only on a substantial question of law. Except for an order refusing redemption, only where the amount in dispute is not less than ten thousand rupees or a higher notified amount. Limitation: sixty days.

Point	Rule
Schedules	Second (employees covered), Third (occupational diseases, Parts A, B and C), Fourth (injuries and percent loss of earning capacity; Part I permanent total disablement, Part II permanent partial disablement), Sixth (relevant factors). The old Act numbered them I to IV: injuries I, covered employees II, diseases III, factors IV.

Example: a worker aged 48 earns Rs 12,000 a month and dies. Compensation is 50% x 12,000 x 159.80 = Rs 9,58,800. This holds if the notified wage ceiling is not below Rs 12,000 and no notified minimum amount exceeds the result.

Bridge: the Employee's Compensation Act 1923 (repealed)

Point	Act	Code now
Name	The Workmen's Compensation Act 1923 was renamed the Employee's Compensation Act in 2009.	Code on SS Ch VII
Death formula	OLD EC Act 1923 s.4(1)(a) 50% of monthly wages x relevant factor	Code on SS s.76(1)(a) the same formula
Injury schedule	OLD EC Act 1923 Schedule I Part II	Code on SS Fourth Schedule Part II
Deciding officer	The Commissioner disposes of the matter and intimates the decision within three months of reference OLD EC Act 1923 s.25A .	The "competent authority". No three-month limit appears in Code on SS ss.88 to 92 or in Rules SS Central Rules r.57 to 63.

9. Maternity Benefit (Chapter VI)

Law today. Code on SS Ch VI gives maternity benefit. It is in force from 21 November 2025. The Maternity Benefit Act 1961 is repealed.

What is her situation? The maximum weeks follow.

Fewer than two surviving children

26 weeks, of which not more than **8 weeks** precede the expected delivery Code on SS s.60(3).

Two or more surviving children

12 weeks, of which not more than **6 weeks** precede the expected delivery Code on SS s.60(3).

Adopting or commissioning mother

12 weeks from the date the child is handed over. The adopted child is below three months of age Code on SS s.60(4).

Miscarriage or medical termination

6 weeks of leave with wages immediately following the day Code on SS s.65.

Code on SS s.60(2) Qualifying service

A woman is entitled only if she has actually worked in the establishment for not less than **eighty days** in the twelve months immediately before the expected delivery.

Code on SS s.60(4) Adopting or commissioning mother

A woman who legally adopts a child below three months of age, or a commissioning mother, gets **twelve weeks** from the date the child is handed over.

OLD MB Act 1961 s.5(4) already gave twelve weeks to a commissioning or adopting mother SAME

Code on SS s.65 Miscarriage and others

Miscarriage or medical termination of pregnancy: **six weeks** of leave with wages immediately following the day. Tubectomy: **two weeks**. Illness arising out of pregnancy, delivery, premature birth, miscarriage or termination: up to **one month** more.

Point	Rule
No work after delivery Code on SS s.59	No employer may knowingly employ, and no woman may work, during the **six weeks** immediately following delivery, miscarriage or medical termination.

Point	Rule
Arduous work Code on SS s.59	On her request, a pregnant woman cannot be required to do arduous work, work involving long hours of standing, or work likely to interfere with the pregnancy, during the month immediately preceding the six weeks before the expected delivery. The statute never says "light work".
Rate Code on SS s.60(1)	Maternity benefit is paid at the average daily wage for the period of actual absence. "Average daily wage" is the average of wages for days worked in the three calendar months before the absence, subject to the minimum wage fixed or revised under the Code on Wages, 2019 Wages Code.
Medical bonus Code on SS s.64	A woman entitled to maternity benefit also gets a medical bonus of **Rs 3,500**, or the amount the Central Government notifies, if the employer provides no pre-natal confinement and post-natal care free of charge.
Payment Code on SS s.62(5)	The benefit for the period before the expected delivery is paid in advance on proof of pregnancy. The amount for the later period is paid within **forty-eight hours** of proof of delivery.
Nursing breaks Code on SS s.66	Every woman delivered of a child who returns to duty gets two breaks of the prescribed duration, in addition to the interval for rest, for nursing the child until **fifteen months**. Rules SS Central Rules r.36: each break is 15 minutes, with up to 15 more minutes for travel to a crèche.
Crèche Code on SS s.67	Every establishment to which Chapter VI applies and which employs **fifty** employees (or the number the Central Government prescribes) must have a crèche facility within the prescribed distance. The woman is allowed **four visits** a day, including her rest intervals.
Crèche allowance SS Central Rules r.37(2)(viii)	By agreement with the sole negotiating union or council (or the majority of employees), an establishment may pay a crèche allowance instead. It is not less than **Rs 500** a month per child, or the notified amount, and is admissible for two children only, with an exception for multiple births from the second child birth.
Work from home Code on SS s.60(5)	Where the work can be done from home, the employer may allow it after the maternity benefit, for a period and on conditions both agree.

Point	Rule
Dismissal Code on SS s.68	It is unlawful to discharge or dismiss a woman during or on account of her absence for maternity benefit, to give notice of dismissal that expires during the absence, or to vary her service conditions to her disadvantage. A dismissal for gross misconduct may deprive her of the benefit, with an appeal to the competent authority within **sixty days**.
Continuity Code on SS s.61	Every woman entitled to maternity benefit under Chapter VI continues to be so entitled, even when Chapter IV applies to her establishment, until she becomes qualified to claim maternity benefit under Code on SS s.32.
Bar Code on SS s.32(7)(b)	A woman employee eligible for maternity benefit under Chapter IV is not entitled to claim it from her employer under Chapter VI.

TRAP

Students say maternity law "does not apply to women covered by ESI". The two sections work in turn. Chapter VI continues until she qualifies under Code on SS s.32. Then the bar in Code on SS s.32(7)(b) applies.

Bridge, Maternity Benefit Act 1961 (repealed): the Maternity Benefit (Amendment) Act 2017 raised the period from twelve weeks to twenty-six. The Code keeps the twelve-week rule for a commissioning or adopting mother in Code on SS s.60(4).

10. Gratuity (Chapter V)

Law today. Code on SS Ch V pays gratuity. It is in force from 21 November 2025. The Payment of Gratuity Act 1972 is repealed.

Why did the employment end?

Superannuation, retirement or resignation

Gratuity needs continuous service of not less than **5 years** Code on SS s.53.

Death or disablement, expiry of fixed-term employment, or a notified event

The five-year condition does not apply Code on SS s.53.

Code on SS s.53 **Payable**

On termination of employment after continuous service of not less than **five years** on (a) superannuation, (b) retirement or resignation, (c) death or disablement due to accident or disease, (d) termination of a fixed-term contract, or (e) a notified event.

Code on SS s.53(2) Amount

For every completed year of service or part thereof in excess of six months, **fifteen days' wages** (or the number of days the Central Government notifies), based on the rate of wages last drawn. For a monthly rated employee: monthly wage last drawn divided by **26**, multiplied by **15**.

Example: last wages Rs 26,000, service 20 years 7 months. Part of a year over six months counts as a year, so 21 years. Gratuity = 26,000 x 15/26 x 21 = Rs 3,15,000.

Point	Rule
Working journalist	The five years in Code on SS s.53(1) are deemed **three years** (Working Journalists Act 1955 definition).
Fixed-term employee Code on SS s.53(2)	Gratuity is paid on a **pro rata** basis (third proviso). The Code names no one-year minimum.
Fixed-term employee SS Central Rules r.33(1)	Eligible if he renders service under the contract for at least **one year**. Service of more than six months but less than one year in the subsequent period is rounded off to one additional year.
Piece-rated, seasonal	Piece-rated: daily wages are the average of total wages for the three months before termination (overtime excluded). Seasonal employment: gratuity is **seven days' wages** for each season.
Ceiling Code on SS s.53(3)	The amount of gratuity must not exceed the amount the Central Government notifies. The Code states no rupee figure.
Forfeiture Code on SS s.53(6)(a)	Forfeited to the extent of the damage or loss to the employer's property caused by an act, wilful omission or negligence for which the services were terminated.
Forfeiture Code on SS s.53(6)(b)	May be wholly or partially forfeited if services were terminated for riotous or disorderly conduct or any other act of violence, or for an offence involving moral turpitude committed in the course of employment.
Continuous service Code on SS s.54	Uninterrupted service, including breaks for sickness, accident, leave, lay-off, strike. An employee not in continuous service for a year is deemed so if he actually worked at least **240 days** in the twelve months (**190 days** for an employee below ground in a mine or in an establishment working less than six days a week).
Seasonal establishment Code on SS s.54	Deemed continuous if he actually worked at least **75%** of the days on which the establishment operated.

Point	Rule
Payment time Code on SS s.56	Within **thirty days** of becoming payable. If not, simple interest at a rate not exceeding the notified long-term-deposit rate, unless the delay is the employee's fault and the employer has the competent authority's written permission.
Application SS Central Rules r.33(1)	The employee applies in Form IV, ordinarily within thirty days of the date it became payable. The employer decides within the periods the Rules set.
Dispute Code on SS s.56(5)	The employer, employee or any other person raising the dispute applies to the competent authority. The employer first deposits the amount he admits. The Code does not use the term "Controlling Authority".
Competent authority Code on SS s.58(1)	The appropriate Government appoints any officer with the prescribed qualifications and experience by notification, for the area the notification specifies. Code on SS s.2(16) defines it for Chapter V as an authority appointed under Code on SS s.58.
Appeal Code on SS s.56(8)	Within **sixty days** from receipt of the order, to the appropriate Government or the authority it specifies. A proviso lets the appeal be admitted after sixty days for sufficient cause.
Insurance Code on SS s.57(1)	Every employer other than a Central or State Government employer must, from a date the appropriate Government notifies, insure his gratuity liability with an IRDA-regulated insurer. The appropriate Government may exempt employers with an approved gratuity fund and employers employing five hundred or more persons who set up an approved fund. The duty starts only from the notified date.
No attachment Code on SS s.151	Gratuity is not liable to attachment in execution of a decree.

Bridge, Payment of Gratuity Act 1972 (repealed): compulsory insurance was OLD Gratuity Act 1972 s.4A. The Code's equivalent is Code on SS s.57(1). The Code uses "competent authority" and does not use the term "Controlling Authority".

11. Gig and platform workers

Law today. The gig and platform worker provisions (Code on SS ss.113, 114, Code on SS s.141) are in force from 21 November 2025. Code on SS s.114 is in force, but the aggregator's duty to contribute starts on a date the Central Government notifies.

Code on SS s.114(1) **Schemes**

The Central Government may frame schemes for gig workers and platform workers on life and disability cover, accident insurance, health and maternity benefits, old age protection, crèche and other benefits.

Code on SS s.114(4) **Aggregator contribution**

At a rate notified by the Central Government, **not less than 1%** and **not exceeding 2%**, of the annual turnover of an aggregator in a category listed in the Seventh Schedule. The contribution must not exceed **5%** of the amount paid or payable by the aggregator to gig workers and platform workers. Turnover excludes tax, levy and cess paid or payable to the Central Government. The actual rate within the 1% to 2% band is a notification, not Code text.

Code on SS s.114(5) **When it starts**

The date of commencement of the aggregator contribution is to be notified by the Central Government. The Central Government may exempt an aggregator or class from paying it.

The Seventh Schedule has nine categories: ride sharing services; food and grocery delivery services; logistic services; e-market place (market place and inventory model) for wholesale or retail sale of goods or services (B2B/B2C); professional services provider; healthcare; travel and hospitality; content and media services; any other goods and services provider platform.

Point	Rule
Board **Code on SS s.114(6)**	For gig and platform workers the National Board is reconstituted: five representatives of aggregators, five of gig and platform workers, the Director General of the Corporation, the Central Provident Fund Commissioner, expert members, five State Government representatives and a Joint Secretary as Member Secretary replace the **Code on SS ss.6(2)(c), 6(2)(d)** members.
Social Security Fund **Code on SS s.141**	The Central Government establishes a Social Security Fund for the social security and welfare of unorganised, gig and platform workers. It is funded by money under **Code on SS s.109(3)**, money under **Code on SS s.114(3)** and composition of offences and other central labour-law funds. **Code on SS s.141(2)** requires a separate account for each source.

The Rules for gig and platform workers (in force from 8 May 2026)

Point	Rule
Registration age Code on SS s.113; SS Central Rules r.48(2)(a)	A gig or platform worker must be at least **sixteen** years of age (or the age the Central Government prescribes) to register. Every gig and platform worker who has completed sixteen years must register.
Eligibility SS Central Rules r.48(2)(e) proviso	Scheme benefits only if engaged with an aggregator for at least **ninety days**, or **one hundred and twenty days** across multiple aggregators, in the last financial year. A day counts if he earned any income that day.
Exit SS Central Rules r.49(4)	A registered worker ceases to be eligible for scheme benefits at **sixty** years of age, or when he is not engaged for at least ninety days (one hundred and twenty with multiple aggregators) in the last financial year.
Fund administration SS Central Rules r.64	Sets up the Fund's administration. SS Central Rules r.49(1)(c) keeps a separate account for gig and platform workers.

The aggregator's year, under the Rules:

1. **Share details**
   The aggregator shares the details of its gig and platform workers on the designated portal within **forty-five days** of the Rules' commencement. It registers each new worker, and shares exits, in real time or on a daily basis through an API SS Central Rules r.48.
2. **30 June**
   A provisional contribution (Form XX) by 30 June of the year after the financial year SS Central Rules r.49(3).
3. **31 October**
   A final return (Form XXI) with any balance SS Central Rules r.49(3). The duty bites only once the contribution under Code on SS s.114 is notified.
4. **Delay**
   Interest at **1%** for every month or part of a month from the due date until payment SS Central Rules r.49(2). The Rule states no annual rate.

12. Unorganised workers and the Boards

Law today. The Boards and schemes for unorganised workers (Code on SS s.6, Code on SS s.109) are in force from 21 November 2025. The Unorganised Workers' Social Security Act 2008 is repealed.

Point	Rule
National Social Security Board Code on SS s.6	Chairperson: the Union Minister for Labour and Employment. Vice-Chairperson: the Secretary of the Ministry. **Forty** members nominated by the Central Government: seven unorganised workers, seven employers, seven eminent persons, two Lok Sabha and one Rajya Sabha members, ten Central Ministries, five State Governments, one Union Territory. The Director General Labour Welfare is Member-Secretary.
State Boards Code on SS s.6	Every State Government constitutes a State Unorganised Workers' Social Security Board, chaired ex officio by the State Minister of Labour and Employment, with **thirty-one** nominated members.
Registration age	A gig, platform or unorganised worker must be at least sixteen years of age (or the age the Central Government prescribes) to register.

Who frames the schemes Code on SS s.109:

Central Government Code on SS s.109(1)

Welfare schemes on life and disability cover, health and maternity, old age protection, education and others.

State Governments Code on SS s.109(2)

Schemes on provident fund, employment injury benefit, housing, children's education, skill upgradation, funeral assistance and old age homes.

Bridge, Unorganised Workers' Social Security Act 2008 (repealed): the National Board had the Union Labour Minister as chairman, the Director General (Labour Welfare) as member-secretary and **34** members nominated by the Central Government (7 unorganised workers, 7 employers, 7 civil society or eminent persons, 3 MPs, 5 Central Government and 5 State Government representatives). The Code has 40. Registration under the Act was for workers aged 14 and above with a smart card. The Code registers from age 16.

TRAP

Students swap the two ages and two band numbers. A gig, platform or unorganised worker registers at **16**. A building worker is a beneficiary from **18 to under 60**. The aggregator band and the building cess band are both **1% to 2%**, but one is on turnover and the other on cost of construction.

13. Building and other construction workers (Chapter VIII)

Law today. Code on SS Ch VIII is in force from 21 November 2025. The BOCW Welfare Cess Act 1996 is repealed.

Code on SS s.100(1) **Cess**

A cess for the social security and welfare of building workers is levied at a rate **not less than 1%** and **not exceeding 2%** of the cost of construction incurred by an employer, specified by the Central Government by notification. The cost of construction excludes the cost of land and any compensation paid or payable to an employee or kin under Chapter VII.

Code on SS s.103; SS Central Rules r.41 **Self-assessment**

The employer self-assesses the cess within **sixty days** (or a notified period) of completion of each building or construction work, adjusting advance cess, and files a return. If the assessing officer finds a discrepancy he makes an assessment order.

Code on SS ss.106, 107 **Beneficiary**

A building worker aged at least **eighteen** and under **sixty** who has worked on building or construction work for at least **ninety days** in the preceding twelve months is registered as a beneficiary by the officer authorised by the State Building Workers' Welfare Board. He ceases to be a beneficiary at sixty or if he works fewer than ninety days in a year.

Point	Rule
Rs 50 lakh test Code on SS s.2(6)	The definition of "building or other construction work" does not include work employing fewer than ten workers in the preceding twelve months, or work for an individual's or group's own residence whose total cost does not exceed fifty lakh rupees (or a higher notified amount, with a notified number of workers). It is a definitional exclusion, not a cess exemption.
Scrutiny threshold SS Central Rules r.41(4)(a) proviso	**Rs 10 lakh** appears only as the self-assessed cess amount above which the assessing officer scrutinises the return. It is not a construction-cost exemption.
Fund Code on SS s.108	The cess proceeds are credited to the Building and Other Construction Workers' Welfare Fund of the State Building Workers' Welfare Board. The Board's salaries and administrative expenses must not exceed **5%** of its total expenses in a year.

TRAP

Students confuse the Rs 10 lakh and Rs 50 lakh figures because both look like a cess exemption. Rs 10 lakh only triggers scrutiny of a self-assessed return. Rs 50 lakh is in the definition of building work, for an own residence.

14. Career centres

Law today. Code on SS s.139 on career centres is in force from 21 November 2025. The Employment Exchanges (Compulsory Notification of Vacancies) Act 1959 is repealed.

Point	Rule
Reporting vacancies Code on SS s.139(1)	The appropriate Government may, by notification, require employers in establishments (or classes) to report vacancies to a notified career centre before filling them. The reporting duty starts only from a notification.
No duty to recruit through it Code on SS s.139(3)	No employer is obliged to recruit through the career centre merely because a vacancy is reported.
Until notified SS Central Rules r.55, 56	The existing local and Central Employment Exchanges function as career centres (Regional) and career centres (Central). Reports are made through a digital mechanism that issues a vacancy number within **three working days** (seven in the north-eastern States).

The Cine-Workers and Cinema Theatre Workers (Regulation of Employment) Act 1981 is not in this Code. It sits in OSH Code (Topic 8).

15. Registration, inspection, offences and compounding

Law today. The sections below (Code on SS ss.3, 122, 123, 124, 133, 134, 136, 137, 138) are in force from 21 November 2025.

Point	Rule
Registration Code on SS s.3(1)	Every establishment to which the Code applies must be registered, electronically or otherwise, within the time and in the manner the Central Government prescribes. An establishment already registered under any other Central labour law need not register again, and that registration is deemed registration under the Code.
Records and returns Code on SS s.123	Records and registers may be kept electronically. The employer files returns electronically or otherwise to the officer or authority prescribed, in the manner and periods the appropriate Government prescribes.

Point	Rule
Inspector-cum-Facilitator Code on SS s.122(1)	The Central Government (for Chapters III and IV) and the appropriate Government (for other provisions) appoint Inspector-cum-Facilitators. Code on SS s.2(37) defines the post by reference to Code on SS s.122.
Role Code on SS s.122(5)	The Inspector-cum-Facilitator may advise employers and employees on compliance and, subject to the instructions or guidelines issued by the appropriate Government, may inspect the establishments assigned to him.
Inspection scheme Code on SS ss.122(2), 122(3)	The Government may lay down a web-based inspection scheme and may confer randomised selection of inspections on Inspector-cum-Facilitators.
Direction before prosecution Code on SS s.137	Before prosecuting an employer the Inspector-cum-Facilitator must give a written direction that lays down a time period for compliance. If the employer complies within it, no prosecution is started. No such opportunity is given if the same kind of violation is repeated within **three years** of the first violation.
Cognizance Code on SS s.136	No court takes cognizance of an offence under the Code except on a complaint by an aggrieved person or an officer notified by the Government. No prosecution starts without the previous sanction of the notified authority.
Wages protected Code on SS s.124	An employer must not reduce the wages or total benefits of an employee by reason only of his liability to pay a contribution under the Code.

Offences and penalties

Offence	Penalty
Obstructing an Inspector-cum-Facilitator or other officer Code on SS s.133	Imprisonment up to **six months**, or fine up to **Rs 50,000**, or both.
Not paying the employee's contribution that the employer deducted from wages Code on SS s.133	Imprisonment of not less than **one year** and up to **three years**, and fine of **Rs 1 lakh**. The court may impose a lesser term for adequate and special reasons recorded.

Offence	Penalty
Other contribution defaults Code on SS s.133	Imprisonment of two months to six months and fine of **Rs 50,000**.
Repeat offender Code on SS s.134	Imprisonment up to **two years** and fine of **Rs 2 lakh**. For a repeat failure to pay contribution, charges, cess, maternity benefit, gratuity or compensation: imprisonment of **two to three years** and fine of **Rs 3 lakh**.

Compounding Code on SS s.138

What can the first offence be punished with?

Fine only

It may be compounded on payment of **half** of the maximum fine Code on SS s.138(1).

Imprisonment of not more than one year and also fine

It may be compounded on payment of **three-fourths** of the maximum fine Code on SS s.138(1).

Point	Rule
Bars and extra Code on SS ss.138(2), 138(7)	Compounding is barred for a second offence within three years of an earlier compounded or convicted offence. A person who fails to comply with a compounding order is liable for **twenty per cent.** of the maximum fine in addition.
Deposit SS Central Rules r.54	The compounding amount must be deposited within **fifteen days** of the notice (Form XXIV).

16. Exemption and emergency powers

Law today. Code on SS s.143 (the parts not in force since 2023) and Code on SS s.144 are in force from 21 November 2025.

Code on SS s.143 **Exemption**

The appropriate Government may exempt an establishment or class of establishments from any provision of the Code or a scheme, if the employees receive benefits substantially similar or superior. The exemption is initially for **three years** from the date of the notification. An exempted establishment's PF is run by a board of trustees constituted by the employer. No exemption in respect of the PF, Pension or Insurance Scheme is granted or renewed without prior consultation with the Central Board. None in respect of Chapter IV without prior consultation with the Corporation.

OLD EPF Act 1952 s.17 the appropriate Government could exempt an establishment if its employees got benefits not less favourable SAME

SS Central Rules r.65(1) **Conditions for exemption**

Substantially similar or superior benefits; compliance with Chapter III (or the EPF Act 1952) or Chapter IV (or the ESI Act 1948) for a continuous **three years** before applying, without default; at least **five hundred** contributory members (Chapter III) or employees (Chapter IV); a cumulative member balance of **Rs 50 crore** or more for the PF or Pension Scheme; and majority employee consent for Chapter III. SS Central Rules r.65(1)(g) also needs a positive net worth for three years and SS Central Rules r.65(1)(h) needs linking of Aadhaar.

Old exemptions Code on SS s.164(2)(c): an exemption given under a repealed enactment stays in force till its validity expires or it ceases to operate under the Code. Separately, the EPF Scheme 2026 para 13(40) says establishments with exemption under the repealed Act apply for continuation within two years from the date of notification of the Social Security (Central) Rules 2026.

TRAP

Students mix the two "threes". The exemption term is 3 years Code on SS s.143. The compliance record needed to apply is also 3 years, but it sits in the Rules SS Central Rules r.65(1).

Code on SS s.144 **Emergency power**

In a pandemic, endemic or national disaster, the Central Government may by order defer or reduce the employer's or employee's contribution, or both, under Chapter III or IV, for up to **three months** at a time, for the whole of India or a part. The statute says "endemic", not "epidemic".

17. The nine repealed Acts: where each went

All nine Acts are repealed by Code on SS s.164(1): items 1, 2 and 4 to 9 from 21 November 2025; the EPF and Miscellaneous Provisions Act 1952 (item 3) for the matching provisions from 3 May 2023 and for the rest from 21 November 2025.

Old Act	Where it is now
OLD EC Act 1923 Employee's Compensation Act 1923	Code on SS Ch VII

Old Act	Where it is now
OLD ESI Act 1948 Employees' State Insurance Act 1948	Code on SS Ch IV
OLD EPF Act 1952 Employees' Provident Funds and Miscellaneous Provisions Act 1952	Code on SS Ch III with the Schemes 2026
OLD Employment Exchanges Act 1959 Employment Exchanges (Compulsory Notification of Vacancies) Act 1959	Career centres Code on SS s.139
OLD MB Act 1961 Maternity Benefit Act 1961	Code on SS Ch VI
OLD Gratuity Act 1972 Payment of Gratuity Act 1972	Code on SS Ch V
OLD Cine-Workers Fund Act 1981 Cine-Workers Welfare Fund Act 1981	Repealed by Code on SS s.164(1) item 7
OLD BOCW Cess Act 1996 BOCW Welfare Cess Act 1996	Code on SS Ch VIII
OLD UWSS Act 2008 Unorganised Workers' Social Security Act 2008	Subsumed in the Code, Code on SS s.6 and Code on SS s.109

What changed

Point	Before	Now	
EPF coverage	Factory in a Schedule I industry with 20 or more persons, or a notified establishment or class OLD EPF Act 1952	**20** or more employees, no list of industries Code on SS First Schedule	CHANGED
Co-operative exclusion	Fewer than 50 persons, no power OLD EPF Act 1952 s.16(1)(a)	Fewer than 50 persons, no power Code on SS s.20(1)(a)	SAME
EPF pay base	Basic wages, dearness allowance and retaining allowance OLD EPF Act 1952 s.6	"Wages" Code on SS s.16(1)(a)	CHANGED
EPF Schemes	EPF Scheme 1952, EDLI Scheme 1976, EPS 1995	Schemes of 29 June 2026 Code on SS s.15(1)	CHANGED

Point	Before	Now	
Delay interest	Simple interest at 12% a year OLD EPF Act 1952 s.7Q	Rate notified, no figure Code on SS s.127	CHANGED
Appeal deposit	**75%**, which the Tribunal may waive or reduce OLD EPF Act 1952 s.7-O	**25%**, no waiver proviso Code on SS s.23(3)	CHANGED
Appeal body	Industrial Tribunal OLD EPF Act 1952 s.7D	Tribunal constituted by the Central Government Code on SS s.23	SAME
Recovery Officer	Defined for the EPF Act OLD EPF Act 1952 s.2(kb)	Serves every chapter of the Code Code on SS s.129	CHANGED
ESI rate	4% (3.25% plus 0.75%) since 1 July 2019 OLD ESI Act 1948	3.25% plus 0.75%, in the Rules SS Central Rules r.19(1)	SAME
Compensation formula	50% of monthly wages x relevant factor OLD EC Act 1923 s.4(1)(a)	The same formula Code on SS s.76(1)(a)	SAME
Injury schedule	Schedule I, Part II OLD EC Act 1923	Fourth Schedule, Part II Code on SS Fourth Schedule	CHANGED
Deciding officer	The Commissioner decides within 3 months of reference OLD EC Act 1923 s.25A	The competent authority; no time limit Code on SS s.91	REMOVED
Commissioning mother	12 weeks OLD MB Act 1961 s.5(4)	12 weeks Code on SS s.60(4)	SAME
Compulsory gratuity insurance	Employer insures OLD Gratuity Act 1972 s.4A	Employer insures, from a notified date Code on SS s.57(1)	SAME
National Board	34 members OLD UWSS Act 2008	**40** members Code on SS s.6	CHANGED
Registration age	14 and above, with a smart card OLD UWSS Act 2008	**16** years Code on SS s.113	CHANGED
Exemption	Benefits not less favourable OLD EPF Act 1952 s.17	Substantially similar or superior; 3 years initially Code on SS s.143	CHANGED

Numbers on one scale

Headcounts: persons, employees, workers

- **10** persons: ESI coverage, other than a seasonal factory Code on SS First Schedule
- **10** employees: gratuity and maternity, for shops and establishments Code on SS First Schedule
- **10** workers: fewer than this are outside building work Code on SS s.2(6)
- **20** employees: EPF coverage Code on SS First Schedule
- **50** persons: a co-operative society with fewer than this, without power, is outside Chapter III Code on SS s.20(1)(a)
- **50** employees: crèche facility Code on SS s.67
- **100** persons: separate PF account Code on SS s.21(1)
- **500** members or employees: at least this many for exemption SS Central Rules r.65(1)

Time limits: days

- **3** days: injury must cause disablement for more than this for compensation Code on SS s.74(1)
- **15** days: EPF payment after the month closes EPF Scheme 2026 para 20(1); compounding deposit SS Central Rules r.54
- **30** days: gratuity payment Code on SS s.56; Form IV application SS Central Rules r.33(1)
- **60** days: appeal on gratuity Code on SS s.56(8), maternity dismissal Code on SS s.68, ESI Code on SS s.52 and compensation Code on SS s.99; cess self-assessment Code on SS s.103
- **78** days: contributions for ESI sickness benefit SS Central Rules r.22(1)
- **80** days: actual work for maternity benefit Code on SS s.60(2)
- **90** days: gig worker with one aggregator SS Central Rules r.48(2)(e); building worker Code on SS s.106
- **91** days: ESI sickness cap in two consecutive benefit periods SS Central Rules r.22(1)
- **120** days: gig worker with several aggregators SS Central Rules r.48(2)(e)
- **190** days: continuous service below ground or in a short-week establishment Code on SS s.54
- **240** days: continuous service in a year Code on SS s.54
- **730** days: extended sickness benefit SS Central Rules r.22(2)

Time limits: weeks

- **2** weeks: tubectomy leave Code on SS s.65
- **6** weeks: miscarriage leave Code on SS s.65; no work after delivery Code on SS s.59
- **8** weeks: the most before delivery, within the 26 Code on SS s.60(3)
- **12** weeks: two or more surviving children; adopting or commissioning mother Code on SS ss.60(3), 60(4)
- **26** weeks: maternity benefit maximum Code on SS s.60(3)

Time limits: months

- **1** month: default in paying compensation before damages Code on SS s.77(3); extra leave for illness Code on SS s.65
- **3** months: ESI funeral claim Code on SS s.32(1)(f); contribution deferral at a time Code on SS s.144
- **6** months: obstruction imprisonment Code on SS s.133; a part of a year above this counts as a year for gratuity Code on SS s.53(2)
- **12** months: EPF membership before partial withdrawal groups open EPF Scheme 2026 para 46(2); premature full withdrawal EPF Scheme 2026 para 49(2)
- **15** months: nursing breaks until the child is this old Code on SS s.66

Time limits: years

- **1** year: Tribunal endeavours to decide Code on SS s.23(4); extension of an inquiry Code on SS s.125(2); fixed-term gratuity SS Central Rules r.33(1)
- **2** years: inquiry endeavour Code on SS s.125(2); compensation claim Code on SS s.82; repeat offence imprisonment Code on SS s.134
- **3** years: exemption term Code on SS s.143; repeat violation window Code on SS s.137; working journalist gratuity Code on SS s.53(1)
- **5** years: gratuity service Code on SS s.53; limit for starting an EPF proceeding Code on SS s.125(1)
- **10** years: eligible service for pension EPS Scheme 2026 para 12(1)(i)

Ages in years

- **16** registration of gig, platform and unorganised workers Code on SS s.113
- **18** lower age for a building worker beneficiary Code on SS s.106
- **50** earliest early pension EPS Scheme 2026 para 12(7)
- **55** full EPF withdrawal on retirement EPF Scheme 2026 para 49(1)(i)
- **58** age of superannuation for Chapter III Code on SS s.2(82)
- **60** exit age for gig workers SS Central Rules r.49(4); building workers cease at 60 Code on SS s.107; pension deferral up to 60 EPS Scheme 2026 para 12(9)

Shares and rates

0.25% EPF damages a month for default of less than two months EPF Scheme 2026 para 23(1)

0.75% ESI employee share SS Central Rules r.19(1)

1% to 2% aggregator contribution on turnover Code on SS s.114(4); building cess on cost of construction Code on SS s.100(1)

3.25% ESI employer share SS Central Rules r.19(1)

5% aggregator cap on payouts Code on SS s.114(4); Board expenses cap Code on SS s.108

8.33% employer's part to the Pension Fund EPS Scheme 2026 para 4(1)

10% Code default contribution Code on SS s.16(1)(a)

12% by notification Code on SS s.16(1)(a); Scheme 2026 default EPF Scheme 2026 para 18(2)

20% extra on the maximum fine for not complying with a compounding order Code on SS s.138(7)

25% appeal deposit Code on SS s.23(3); minimum EPF balance kept EPF Scheme 2026 para 46(1)

50% death compensation Code on SS s.76(1)(a); damages cap on late compensation Code on SS s.77(3); half of the maximum fine compounded Code on SS s.138(1)

60% permanent total disablement Code on SS s.76(1)(b)

70% ESI sickness benefit SS Central Rules r.22(1)

75% seasonal establishment attendance Code on SS s.54; three-fourths of the maximum fine compounded Code on SS s.138(1)

80% extended sickness benefit SS Central Rules r.22(2)

90% ESI disablement and dependants' benefit SS Central Rules r.22

Money: rupees

- **Rs 500** crèche allowance a month per child, at least SS Central Rules r.37(2)(viii)
- **Rs 1,000** minimum partial EPF withdrawal EPF Scheme 2026 para 46(1); minimum monthly pension EPS Scheme 2026 para 12(8)
- **Rs 3,500** maternity medical bonus Code on SS s.64
- **Rs 15,000** ESI medical bonus SS Central Rules r.22(4); compensation funeral deposit Code on SS s.76(7); old EPF wage ceiling
- **Rs 18,000** a month: inter-State migrant worker wage limit Code on SS s.2(41)
- **Rs 20,000** ESI funeral expenses SS Central Rules r.21
- **Rs 25,000** EPF wage ceiling from 17 September 2026
- **Rs 50,000** fine for obstruction; fine for other contribution defaults Code on SS s.133
- **Rs 1 lakh** fine for not paying the deducted employee contribution Code on SS s.133
- **Rs 2 lakh** fine for a repeat offender Code on SS s.134
- **Rs 2,50,000** EDLI benefit minimum EDLI Scheme 2026 para 21(4)
- **Rs 3 lakh** fine for a repeat contribution-type offence Code on SS s.134
- **Rs 5 lakh** auto-settlement limit for advance claims, raised from Rs 1 lakh in June 2025
- **Rs 7,00,000** EDLI benefit maximum EDLI Scheme 2026 para 21(4)
- **Rs 10 lakh** cess scrutiny threshold SS Central Rules r.41(4)(a)
- **Rs 50 lakh** own-residence test in building work Code on SS s.2(6)
- **Rs 50 crore** cumulative balance for exemption SS Central Rules r.65(1)

Quick revision

Sections / chapters / Acts repealed	164 / 14 / 9 Code on SS s.164(1)
Assent	28 September 2020
Aadhaar section	Code on SS s.142, from 3 May 2021, S.O. 1730(E)
Pension Scheme parts, Code on SS s.16(1)(b), EPF Act repeal	3 May 2023, S.O. 2060(E)

General date	21 November 2025, S.O. 5319(E); corrigendum S.O. 5936(E), 19 December 2025
Rules	G.S.R. 344(E), 8 May 2026
Schemes 2026	G.S.R. 525(E) EPF, 526(E) EDLI, 527(E) EPS; 29 June 2026
Coverage	EPF 20 or more; ESI 10 or more; gratuity and maternity shops 10 or more
Once covered	Code on SS s.1(8)
EPF contribution	Code 10%, 12% by notification; Scheme 12% each, 10% for notified classes
EPF payment and damages	15 days from close of month; 0.25%, 0.50%, 1% a month
Wage ceiling	Rs 15,000 (from September 2014); Rs 25,000 from 17 September 2026
Retirement withdrawal; pension age	55; 58
Pension	10 years, divided by 70, 60 months, minimum Rs 1,000; early from 50, minus 4% a year; defer to 60
EDLI benefit	35 times average wages plus 50% of average balance; Rs 2.5 lakh to Rs 7 lakh
EPF appeal	Tribunal, Code on SS s.23; deposit 25% (old Act 75%); no proceeding after 5 years
ESI rates	3.25% employer, 0.75% employee, SS Central Rules r.19(1); Rs 20,000 wage gives Rs 650 and Rs 150
ESI benefits	Six: sickness, maternity, disablement, dependants', medical, funeral; no "health benefit"
ESI sickness	78 days; 70%; 91 days in two benefit periods; extended 80%, 730 days
ESI disablement, dependants; funeral	90%; Rs 20,000, claim in 3 months
Compensation	Death 50%, permanent total 60%, temporary 25% half-monthly; factor 159.80 at age 48; claim in 2 years

Compensation late payment	After one month: interest; damages up to 50% of arrears if unjustified
Maternity	80 days worked; 26 weeks (8 before); 12 weeks for two or more children (6 before); adopting or commissioning 12 weeks; miscarriage 6 weeks; tubectomy 2 weeks
Maternity extras	Medical bonus Rs 3,500; payment in 48 hours; 2 nursing breaks to 15 months; crèche at 50 employees; dismissal appeal 60 days
Gratuity	5 years (none on death, disablement, fixed-term expiry); working journalist 3 years; 15 days' wages; wage divided by 26 x 15 x years
Gratuity: continuous service, payment, appeal	240 days (190 days); pay in 30 days; appeal in 60 days; seasonal 7 days' wages
Gratuity ceiling; insurance	As notified, no figure in the Code; Code on SS s.57(1) from a notified date
Aggregator	1% to 2% of turnover; cap 5% of payouts; starts on a notified date; Form XX by 30 June, Form XXI by 31 October; delay 1% a month
Gig eligibility, ages	90 or 120 days; register at 16; exit at 60
Boards	National 40 members (old Act 34); State 31
Social Security Fund	Code on SS s.141
Building cess	1% to 2% of cost of construction; beneficiary 18 to under 60 with 90 days; Board expenses not above 5%
Career centre	Code on SS s.139; vacancy number in 3 working days
Before prosecution	Written direction with a time period; none for a repeat within 3 years
Penalties	Obstruction 6 months or Rs 50,000; deducted contribution unpaid 1 to 3 years and Rs 1 lakh; repeat 2 years and Rs 2 lakh

Compounding	Half of the maximum fine; three-fourths with imprisonment up to 1 year and fine; plus 20% on default
Exemption; emergency	Code on SS s.143, 3 years initially, at least 500 members and Rs 50 crore (Rules); Code on SS s.144, up to 3 months at a time

Test yourself

1. Which parts of the Code came into force before 21 November 2025, and when?
2. What is the employee headcount for EPF coverage, and what is it for ESI?
3. What does the Code say about the EPF contribution rate, and what does the EPF Scheme 2026 say?
4. What deposit must an employer make to appeal in an EPF dues case, and what was it under the old Act?
5. A worker aged 48 earns Rs 12,000 a month and dies from a work injury. What is the compensation?
6. How many weeks of maternity benefit does a woman with two surviving children get? What about a miscarriage?
7. Last wages Rs 26,000, service 20 years 7 months. What is the gratuity?
8. On a wage of Rs 20,000, what do the employer and the employee pay to ESI?
9. What is the aggregator contribution band and cap? When does the duty start?
10. A first offence is punishable with imprisonment of up to one year and fine. At what share of the maximum fine can it be compounded?
11. What is the initial term of an exemption under the Code? Where is the 3-year compliance record?

Answers

1. Code on SS s.142 (Aadhaar) from 3 May 2021. The Pension Scheme 1995 parts, all of Code on SS s.16(1)(b) and the repeal of the matching EPF Act provisions from 3 May 2023.
2. EPF: 20 or more employees. ESI: 10 or more persons, other than a seasonal factory Code on SS First Schedule.
3. The Code reads 10% with 12% by notification Code on SS s.16(1)(a). The Scheme reads 12% each side, with 10% for notified classes EPF Scheme 2026 para 18(2).
4. 25% of the amount due Code on SS s.23(3). The old Act asked 75% OLD EPF Act 1952 s.7-O.
5. 50% x 12,000 x 159.80 = Rs 9,58,800 Code on SS s.76(1)(a). This holds if the notified wage ceiling is not below Rs 12,000 and no notified minimum exceeds the result.
6. 12 weeks, of which not more than 6 precede delivery Code on SS s.60(3). A miscarriage gets 6 weeks Code on SS s.65.
7. Part of a year over six months counts as a year, so 21 years. 26,000 x 15/26 x 21 = Rs 3,15,000 Code on SS s.53(2).

8. Employer 3.25% = Rs 650. Employee 0.75% = Rs 150 SS Central Rules r.19(1).
9. Not less than 1% and not more than 2% of annual turnover, capped at 5% of what the aggregator pays or owes gig and platform workers Code on SS s.114(4). The duty starts on a date the Central Government notifies Code on SS s.114(5).
10. Three-fourths of the maximum fine Code on SS s.138(1). A fine-only first offence is compounded at half.
11. 3 years from the date of notification Code on SS s.143. The 3-year compliance record is in the Rules SS Central Rules r.65(1).